

The National Jute Board Regulation, 2012

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Union of India - Act

The National Jute Board Regulation, 2012

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India

The National Jute Board Regulation, 2012

Rule THE-NATIONAL-JUTE-BOARD-REGULATION-2012 of 2012

Published on 20 March 2012

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The National Jute Board Regulation, 2012

Published vide Notification New Delhi, the 20th March, 2012

Ministry of Textiles

(National Jute Board)

G.S.R. 241(E). - In exercise of the powers conferred by section 22 of the National Jute Board Act, 2008 (12 of 2009

), the National Jute Board, with the previous approval of the Central Government, hereby makes the following regulations, namely:-

1.

Short title and commencement

. - (1) These regulations may be called the National Jute Board Regulations, 2012.

(2)

They shall come into force on the date of their publications in the Official Gazette.

2.

Definitions

. - In these regulations, unless the context otherwise requires:-

(a)

"Act means the National Jute Board Act, 2006 ;

(b)

"Jute Board Fund" means the fund created under sub-section (2) of section 14;

(c)

Secretary" means the Secretary of the Board as referred to in clause it) of subsection (4) of Section 3;

(d)

"Section" means a section of the Act ;

(e)

"Vice-Chairperson" means the Vice-Chairperson of the Board elected in accordance with sub-section (6) of section 3 of the Act.

3.

Powers and duties of Secretary

. - (1) The Secretary shall be the chief executive officer at the Board and shall work under the supervision of the Chairperson.

(2)

It shall be the duty of the Secretary to-

(i)

implement all decisions taken by the Board;

(ii)

Co-ordinate and supervise the work of the other officers and the establishment of the Board;

(iii)

convene under the directions of the Chairperson meetings of the Board;

(iv)

maintain the minute books containing a record of the business transacted by the Board and get it circulated to the members for confirmation in the next meeting,

(v)

furnish to the Central Government all reports and other documents required to be furnished to that Government under the Act;

(vi)

prepare every year the budget estimates and accounts of the Board for its approval;

(vii)

sanction re-appropriation, with the approval of the Board or its Chairperson, if it is found in the course of the year that there is likely to be an excess of expenditure over the sanctioned budget estimate under any head, warranting re-appropriation as may be effected out of probable savings found, if any, under any other head/s of the budget estimate;

(viii)

administer the Provident Fund of the Board;

(ix)

undertake such other duties and exercise such other powers, as may, from time to time, be entrusted to him by the Board or the Chairperson.

4.

Cessation of membership

. - (1) A member shall cease to be a member if he fails to attend three consecutive meetings of the Board without leave of the Chairperson.

(2)

A member shall cease to be a member, if he,---

- (i) becomes of unsound mind and is declared so by a competent court, or
- (ii) is an un-discharged insolvent; or
- (iii) is convicted of an offence involving moral turpitude.

5.

Change of address

. - A member shall keep the Secretary informed of any change in his address and on failure to inform the change of his address, the address given in the first instance shall for all purposes be deemed to be his correct address.

6.

Procedure for meetings of Board

. - (1) At least one meeting of the Board shall be held in a year.

(2)

The Chairperson may, at any time, convene a meeting of the Board:

Provided that it shall be the duty of the Chairperson to convene a meeting of the Board if a requisition for such meeting is presented to him in writing by at least twelve members of the Board:

Provided further that it shall be competent for the Central Government to require the Chairperson to convene a meeting of the Board at any time:

Provided also that in cases of emergency, a special meeting may be summoned at any time by the Chairperson who shall inform in advance the Central Government and the members of the subject matter for discussion and the reasons for which he considers it urgent and no other business shall be transacted at such special meeting.

(3)

The Secretary shall, with the approval of the Chairperson, or, in the absence of the Chairperson, with the approval of the Vice-Chairperson, fix the date, time and place of every meeting of the Board and issue notice of the meeting giving at least fifteen clear day's notice.

(4)

The Secretary shall, with the approval of the Chairperson, or in the absence of Chairperson, the Vice-Chairperson, prepare and circulate amongst the members, at least seven days before a meeting of the Board, a list of the business to be transacted at such meeting and the business, not included in the agenda shall not be considered at a meeting of the Board, without the permission of the person presiding over and if any member desires to suggest any subject for discussion by the Board, he shall give at least fifteen clear days' notice.

(5)

The Chairperson, or in his absence, the Vice-Chairperson, shall preside over the meetings of the Board:

Provided that where both the Chairperson and the Vice-Chairperson are absent, the members present shall elect a member from among themselves to preside over the meeting.

(6)

One-third of the total number of members of the Board but not less than twelve members present shall form a quorum at a meeting of the Board.

(7)

In case of difference of opinion among the members of the Board present at a meeting, the opinion of the majority shall prevail and each member shall have one vote, but in case of equality of votes, the Chairperson, or the Vice-Chairperson, or in the absence of both, the member presiding over such meeting shall have a second or a casting vote.

(8)

Any proposal, which the Board is required to consider, may be referred to all its members either at its meeting or by circulation among all its members and any proposal so circulated and approved by a majority of members shall be as effectual and binding as if such proposal had been passed at a meeting of the Board:

Provided that at least one third of the total number of members of the Board have recorded their views on the proposal.

(9)

When business is transacted by circulation of papers, a record of business so transacted shall be signed by the

chairperson of the Vice-Chairperson of the Board.

(10)

A record shall be maintained of all business transacted by the Board, copies whereof shall be submitted to the Central Government and circulated to the members for confirmation in the next meeting and the record of business transacted at a meeting of the Board shall be signed by the person presiding over such meeting.

7.

Validity of acts and proceedings

. - No act or proceedings of the Board shall be invalid or questioned on the ground merely of any vacancy in, or any defect in the constitution of the Board.

8.

Powers of the Board

. - (1) Power of appointment - Subject to the provisions of Section-II of the Act, the Board may create new posts and make appointments thereto as may be necessary for the efficient performance of its functions:

Provided that no posts carrying the Grade Pay equivalent to or above Grade Pay of Rs.5400 (Pay Band-3) shall be created or filled without the previous approval of the Central Government.

(2)

Other Powers : Subject to the provisions of the regulation 11, the Board may, by resolution, sanction any expenditure or enter into any contract involving expenditure from the Jute Board Fund in the discharge of its functions under the Act:

Provided that the Board shall not sanction any expenditure or enter into any contract involving expenditure in excess of the budget allotments.

Provided further that

(i)

The Board shall not enter into any contract involving any expenditure in excess of two hundred lakhs of rupees, or extending over a period of five years, without the previous approval of the Central Government.

(ii)

The Board shall have power to write off all the losses arising out of normal wear and tear of assets (in lieu of depreciation) and in other individual cases, losses up to five lakhs of rupees.

(iii)

The Board may incur expenditure outside India up to an amount, as may be permissible under the exchange control regulations or other relevant regulations, and guidelines of the Central Government on each individual item.

9.

Register of members

. - (1) The Secretary shall maintain a register in which the name and address of each member of the Board shall be entered.

(2)

The names and addresses of members of any of the Committees of the Board shall be kept in a separate register.

(3)

If a member of the Board or any of its Committees changes his address, he shall notify his new address to the Secretary and the Secretary shall amend the relevant entry in the register accordingly.

10.

Maintenance and operation of bank accounts and investment of funds of the Board

. - (1) All moneys received by the Board shall, as soon as possible be deposited in the State Bank of India or such other nationalised banks or private sector banks (as may be authorized by the Ministry of Finance for availing banking services by the Statutory bodies under various ministries/ departments of the Govt. of India) as may be approved by the Board, and shall not be utilized for any purpose other than the purposes of the Act.

(2)

All payments by or on behalf of the Board shall be made by cheques except for amounts not exceeding ordinarily Rs.5000/- and extraordinarily RS.20,000/- under special sanction of the Secretary, which may be paid in cash.

(3)

Such cheques and all orders for making deposits or investments or for the withdrawal of the same shall be signed jointly by the Secretary and the Chief of Finance Division, or by any two officers authorised by the Board, in this behalf.

(4)

No payment Shall be made out of the funds of the Board unless the expenditure is covered by the sanctioned budget.

(5)

All payments by the Board shall be made on bills or other documents duly prepared and passed by the Secretary or other officer authorised by the Board in this behalf. The paid vouchers shall be stamped "Paid" or so cancelled that they cannot be used a second time.

(6)

All funds not required for current expenditure may be placed in suitable term deposits with State Bank of India or other nationalised banks.

11.

Sending persons abroad

. - The Board shall not send any member of the Board or any of its offices or employees to places outside India without the previous sanction of the Central Government.

Provided that in cases where the Board has to depute its officers to participate in delegations, meetings, seminars, exhibitions, fairs and other activities abroad, it shall be competent for the Secretary to depute the officers if:

(a)

the delegation, meeting, seminar, exhibition, fair or the activity - in which participation is sought has been approved by the Board;

(b)

the budget provision exists for incurring expenditure thereto; and

(c)

the consolidated annual list of activities abroad which the Board would like to participate for promotion and also the number of persons to be deputed from the Board is approved by the Board.

12.

Common Seal of the Board

. - The common seal of the Board shall remain in the custody of the Secretary. All instruments on behalf of the Board viz. deeds for purchase of land and other fixed assets, agreements and Memorandum of Understanding to be entered into by the Board with outside agencies for various jobs assigned 1 studies commissioned, etc. shall be executed by the Secretary or any other officer of the Board authorized for the purpose and the common seal of the Board shall be affixed thereto.

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